

16 June 2026

validity of the Flax Mill Caravan Park eviction notices

Dear Councillors, and CEO,

The following questions are submitted for Public Question Time at the Ordinary Council Meeting on 25 June 2026. They concern the notices issued by CMCA requiring long-term residents of the Flax Mill Caravan Park to vacate by 19 June 2026 (a notice as served is at Attachment A). Those notices enforce the CMCA Guest Stay Policy (Ref: CMCA-GSP-FMB-001), adopted at the Ordinary Council Meeting of 28 May 2026 under agenda Item 10.4.2. In the questions below, "the policy" means that document and "the report" means the officer report for Item 10.4.2 (extract at Attachment B). Because that deadline falls before the meeting, I ask Council to suspend the notices now, and I request written responses by 9am Wednesday 17 June 2026.

1. Any resident who has lived at the park for more than three months is a long-stay tenant under the Residential Parks (Long-stay Tenants) Act 2006 — not the Residential Tenancies Act 1987, the only Act the Guest Stay Policy cites. A long-stay agreement can be terminated only under that Act (s 32Q), the minimum notice for a change-of-use termination is 60 days (or 180 days for residents who own their own home or van) under s 41D, and only the State Administrative Tribunal can order a resident out.

QUESTION: What legal review was undertaken of the Guest Stay Policy and the vacation notices before they were issued, given they cite an Act that does not apply to these residents and impose a notice period the Residential Parks Act does not permit?

2. The report justifies the policy by reference to overdue payments, site presentation and behaviour. The Act provides an individual remedy for each — a default notice for unpaid rent (s 39), a notice to remedy site standards (ss 32L and 64), and a breach notice for park-rule or behaviour issues (s 40) — each giving the resident a chance to fix the problem and leaving termination to the Tribunal. The policy itself concedes this at clause 7. A blanket 21-day vacation identifies no breach, offers no chance to remedy, and bypasses the Tribunal.

QUESTION: Has any affected resident been given an individual notice identifying a specific breach and an opportunity to remedy it? If not, on what lawful ground is a resident who is paid up and compliant being required to vacate?

3. The Shire owns the park and holds the licence; CMCA is its contracted manager. A local government may delegate its statutory powers only to its CEO and employees (Local Government Act 1995, ss 5.42 and 5.44), not to a contractor, and the Shire's Delegation of Authority Register 2026 records no power to terminate a tenancy under either the Caravan Parks and Camping Grounds Act 1995 or the Residential Parks Act.

QUESTION: By what instrument — Council resolution, delegation, or the management agreement — did CMCA acquire authority to issue these notices and to author a policy governing the termination of long-stay tenancies at a Shire-owned park?

4. Given the matters above, the question of legal advice is central.

QUESTION: Did the Shire obtain independent legal advice on the policy and the notices before they were issued, and if so will Council release it?

5. The Ordinary Council Meeting of 28 May 2026 adopted the policy (Item 10.4.2; Decision CM 26/05/117). That policy cites an inapplicable Act, gives 21 days' notice where the Act requires 60 or 180, and applies as a blanket eviction with no individual assessment of any resident's tenancy.

QUESTION: Were members advised, before voting, that the Residential Tenancies Act 1987 does not govern these residents; that the Residential Parks Act 2006 does; that the minimum notice is 60 or 180 days rather than 21; and that CMCA's authority to issue the notices was unconfirmed?

6. The report states the Shire and CMCA are awaiting the statutory review of the Residential Parks Act. That review does not suspend the Act. The Act is in force, and its 2022 reforms removed without-grounds terminations for residents who own their own home or van — the very kind of termination these notices attempt.

QUESTION: On what basis did the Shire treat an ongoing review as a reason to act inconsistently with the Act currently in force, and to impose a vacation the Act does not permit?

7. Section 4 of the policy requires residents to apply to CMCA for an "Essential Worker" extension in order to remain. Security of tenure for a long-stay tenant is a statutory right, not a permission an operator may grant or withhold, and the Act prohibits contracting out of its protections (s 9).

QUESTION: On what legal basis does CMCA require residents to apply for permission to exercise a statutory right, and did the Shire obtain advice that this mechanism is consistent with the Act?

8. The report states permanent residency is not permitted and that the policy is required for compliance with the park's purpose. Long-stay occupancy is a recognised and lawful component of a caravan park under Department guidance and WA Planning Commission Planning Bulletin 49/2014; changing the permitted use of land requires a planning scheme amendment with WAPC and Ministerial approval, not a management notice.

QUESTION: Does the Shire accept that changing the permitted use of Lot 336 requires a formal scheme amendment with WAPC approval and public advertising, and if so on what basis does the policy purport to change that use by notice?

9. The March 2026 Presidential Communications record a meeting on 11 March 2026 — eleven weeks before the notices — with Wagyl Kaip Southern Noongar Aboriginal Corporation regarding a "Flax Mill Caravan Park Master Plan," which has not been publicly released or disclosed to residents.

QUESTION: When was the Master Plan commissioned, by whom and at what cost; has it been considered in closed session and on what date; and why has it not been disclosed to the community?

10. The April 2026 OCM (Item 10.5.5) recorded a \$70,000 revenue shortfall. The park's long-term residents represent reliable, year-round income, most valuable in winter when tourist occupancy is lowest.

QUESTION: Has the Shire modelled the net financial impact of removing this income, and what justifies it against the recorded shortfall?

I also request that the Shire:

- (a) suspend or withdraw the 19 June 2026 notices pending legal review;
- (b) confirm to the affected residents, in writing, that no action will be taken while these questions are being addressed;
- (c) obtain and provide to residents formal legal advice on the Residential Parks (Long-stay Tenants) Act 2006 as it applies to their situation; and
- (d) make the Flax Mill Caravan Park Master Plan publicly available.

This letter and the ten questions will be tabled at the 25 June 2026 OCM Public Question Time.

Yours sincerely,

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Attachments:

- A — CMCA notice as served ("Notice of Stay Limit Enforcement & Required Vacation of Site"), resident details redacted.
- B — Extract of the officer report, Item 10.4.2, Ordinary Council Meeting 28 May 2026.

Legal authorities (verified against primary sources):

- Residential Parks (Long-stay Tenants) Act 2006 (WA), ss 9, 32Q, 39-42, 41D, 64; SAT termination/possession: https://www.legislation.wa.gov.au/legislation/statutes.nsf/main_mrtitle_820_homepage.html
- Consumer Protection (WA), Ending a residential park tenancy: <https://www.consumerprotection.wa.gov.au/ending-residential-park-tenancy>
- State Administrative Tribunal, Residential Parks: https://www.sat.justice.wa.gov.au/R/residential_parks_caravan_parks_and_camping_grounds.aspx
- DLGSC, Developing or redeveloping a caravan park (long-stay occupancy; Planning Bulletin 49): <https://www.dlgsc.wa.gov.au/departments/publications/publication/developing-or-redeveloping-a-caravan-park-or-camping-ground>
- Local Government Act 1995 (WA), ss 5.42, 5.44, 5.45: https://www.legislation.wa.gov.au/legislation/statutes.nsf/main_mrtitle_551_homepage.html
- Shire of Boyup Brook Delegation of Authority Register 2026: https://www.boyupbrook.wa.gov.au/profiles/boyupbrook/assets/clientdata/delegation_of_authority_register_2026_final.pdf

Shire records relied on: Res 22/4/40 (April 2022 OCM); Decision CM 26/05/117 (28 May 2026 OCM); officer report Item 10.4.2 and the SCP governance imperative quoted in it (28 May 2026 OCM)

OCM); Presidential Communications (March 2026); Item 10.5.5 (April 2026 OCM); Town Planning Scheme No. 2 (SU1); Certificate of Title Vol. 1337 Folio 838.